

Court No. - 46

Case :- WRIT - C No. - 23132 of 2023

Petitioner :- Jagan Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Jitendra Narayan Tripathi

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Ashwani Kumar Mishra,J.

Hon'ble Syed Aftab Husain Rizvi,J.

Objection of the petitioner that his electricity was already disconnected and, therefore, demand notice is unauthorized can always be raised before competent authority under clause 6.5B of U.P. Electricity Supply Code. Such factual issues, therefore, are not required to be examined by this Court, at the first instance.

In the event any objection is raised before the competent authority under clause 6.5B of U.P. Electricity Supply Code, the same shall be examined by passing a reasoned order within six weeks from the date of presentation of a certified copy of this order before it. Subject to the observations made hereinabove, this writ petition is disposed of.

Order Date :- 18.7.2023

MN/-